

Tipelodeon — Freedom-to-Operate Analysis

US Patent 12,511,587 B2 (Tipsee Music LLC) | Internal working summary

Not legal advice. This is a technical/patent reading prepared for design decisions. A formal freedom-to-operate opinion should come from a patent attorney with the complete file history.

Bottom Line

Tipelodeon's design — where audience members pay at request time and funds are credited to the performer's tip account immediately, regardless of whether the song is ever performed — appears to be **outside the scope** of every claim in US12511587B2. The prosecution history makes this position especially strong: the applicant explicitly told the USPTO that conditioning tip release on server-verified performance is the technical feature that distinguishes their invention from an abstract idea. Tipelodeon does the opposite — credit is unconditional on performance — and is therefore the very scenario the applicant disclaimed during prosecution.

The Patent at a Glance

- Patent:** US 12,511,587 B2
- Title:** Artist live performance booking management platform system and methods
- Assignee:** Tipsee Music LLC
- Inventor:** Dallas Jackson
- Filed:** June 8, 2023 (CIP of 17/552,724 filed Dec 16, 2021)
- Granted:** December 30, 2025 | **Expires:** September 8, 2042

Claim Structure: Only One Independent Claim

- The patent has 22 claims. Only claim 1 is independent — claims 2 through 22 all depend from claim 1 (each begins "The method of claim 1, further comprising..."). A dependent claim incorporates every limitation of the claim it depends from.
- Consequence:** if Tipelodeon does not infringe claim 1, it cannot infringe any other claim in the patent. The entire question collapses to a single-claim analysis.

Claim 1 vs. Tipelodeon

Patent infringement requires that every element of a claim be present in the accused product (literally or under doctrine of equivalents). The element-by-element comparison:

Claim 1 element	Tipelodeon	Met?
Create artist profile with playlist and tip account	Has both; performer profile includes performance playlist and Stripe Connect tip account	Yes
Generate live performance playlist accessible via QR-code scan	Performer playlist accessible via QR-code scan	Yes

Audience member adds tip amount to a performance request	Audience member request a song — same mechanical action	Yes
Charge audience member via server	Stripe charge at request time	Yes
Artist performs at least a portion of the playlist	Out of platform's control, but occurs in practice	Yes
Credit tip to artist's account WHEN performance request is performed	Credit happens BEFORE performance	No

The crediting element of claim 1 requires that the credit occur "when" the performance request is performed. Whether read temporally ("at the time that") or conditionally ("contingent upon"), Tipelodeon's design does not meet it: the credit occurs before any performance, and is causally independent of whether the song is ever performed.

Prosecution History — The Decisive Finding

The USPTO initially rejected all 22 claims under 35 U.S.C. §101 as directed to an abstract idea — "an artist booking transaction process through a third-party," the standard *Alice/Mayo* rejection for business-method software.

To overcome the rejection, on July 24, 2025 the applicant both amended the claims and submitted written arguments to the examiner. In those arguments, the applicant explicitly identified what makes the invention patent-eligible and non-abstract:

- “Server-side performance verification before any tip is credited or compensation executed.”
- “Server-side confirmation of performance fulfillment before any payment is processed.”
- “Conditions tip execution on confirmation that the requested content was actually performed.”
- “Event-triggered monetization.”

The applicant staked the patentability of the entire claim set on the assertion that the credit is conditioned on server-side verification of performance. The examiner allowed the claims on that basis.

Why This Forecloses Doctrine of Equivalents

Under **argument-based prosecution history estoppel**, a patent applicant is bound by the characterizations they made to the patent office during prosecution. They cannot use the doctrine of equivalents (or expansive claim construction) to recapture subject matter they disclaimed in order to obtain the patent.

Here, Tipsee Music told the USPTO — in writing, on the record — that performance-verified, conditional tip release is the inventive feature that makes their claims non-abstract. That is the exact opposite of how Tipelodeon works:

Patent's claimed invention (as argued to USPTO)	Tipelodeon's design
Server confirms performance before credit	Credit happens at request time
Tip execution conditioned on performance confirmation	Tip release unconditioned on performance
Event-triggered monetization (performance is the event)	Request-triggered monetization (request is the event)

For Tipsee Music to ever assert this patent against Tipelodeon, they would have to argue that the "when performed" language does not really require performance verification — and the examiner has a written record of them telling him the exact opposite to get the patent allowed. That is textbook estoppel.

Likely Narrowing in the Issued Claims

The July 2025 amendment also **added** further limitations to claim 1, including:

- A QR code displayed at the venue, on a physical display or printed surface, associated with a specific live performance

- Audience members located within an "audience area" who scan the code with an audience-side computing device
- Server confirmation "based on data received from a computing device at the performance venue"
- Crediting "**only upon confirmation**" that the selected performance request was performed by the artist during the live performance

The claim text currently shown on Google Patents appears to be the 2023 pre-grant publication, not the granted version. The actual issued claims should be pulled from USPTO PatentCenter to verify. If those limitations made it into the granted claim, Tipelodeon's literal non-infringement position is even stronger — Tipelodeon does not condition crediting on anything performance-related.

Other Features the Patent Covers (Dependent Claims)

These only matter if claim 1 is infringed, but worth knowing because they signal where the patentee was trying to extend coverage:

- **Claim 11:** Geofencing — restricting requests to people physically inside a venue boundary using GPS
- **Claims 13–14:** Royalty pass-through to PROs (ASCAP, BMI) on behalf of the venue
- **Claims 15–16:** Audio fingerprinting to automatically detect which songs were performed
- **Claim 5:** Building an audience/venue email list and notifying subscribers
- **Claim 6:** VIP access record with at-door verification
- **Claim 11 (separate):** Promotional blog tied to artist profile
- **Claim 18:** Route-based suggestion of additional venues along an artist's tour itinerary

Recommended Actions

1. Pull the actual issued claims

Go to USPTO PatentCenter for application 18/207,186 and pull the granted patent document or Issue Notification to confirm the final granted claim language. Confirm whether the "only upon confirmation" wording and QR-code-at-venue limitations made it into the issued claim.

2. Preserve the prosecution history

Save the Non-Final Rejection (June 24, 2025) and the Applicant's Amendment Response (July 24, 2025). These are the defensive ammunition for any future DOE argument and should live with the company's legal records.

3. Write a contemporaneous design memo

Document, dated now, the architectural choice: Tipelodeon credits the performer's tip account at request submission time, irrespective of whether the song is ever performed. The "performed" status is metadata for analytics and is not a payment trigger. Audience members are purchasing the act of submitting a request from the performer's curated catalog; performance is at the artist's sole discretion.

Embed an equivalent characterization in the Terms of Service so this is the legal description of the transaction with users.

4. Get a written FTO opinion from a patent attorney

Before launch. A few thousand dollars to obtain a written non-infringement opinion that, in addition to validating the analysis, can negate willfulness in any future litigation — the difference between actual damages and treble damages. The attorney has an extraordinarily clean record to work from here.

5. Watch the adjacent features

If geofenced-to-venue requesting, audio fingerprinting for performance detection, ASCAP/BMI royalty pass-through, or route-based venue suggestion are ever added to the product roadmap, redo the analysis for those features. They remain non-infringing today only because claim 1 is not infringed; the dependent claims can become live if claim 1's non-infringement position is ever weakened.

Confidence Level

This is no longer a marginal non-infringement position. Tipelodeon's design isn't merely outside the claims — it is the specific scenario the applicant told the USPTO their patent does not cover. A competent patent litigator on the patentee's side, looking at this prosecution history, would have difficulty recommending an enforcement action against a system that credits unconditionally at request time.

Prepared as a working summary for Tipelodeon design decisions. Not a legal opinion. Confirm issued claim language and obtain a written FTO opinion from qualified patent counsel before relying on this analysis for go-to-market.